

The Paradox of Safety and Compliance: A Jurisprudential Analysis of 'Catch and Release' and 'Phantom Refusal' Defenses in Pennsylvania DUI Litigation

I. Introduction and Doctrinal Overview

The prosecution of Driving Under the Influence (DUI) in the Commonwealth of Pennsylvania operates at the intersection of rigid statutory mandates and the fluid, often chaotic realities of roadside police encounters. While the Vehicle Code (Title 75) provides a structured framework for enforcement, the practical application of these laws often generates procedural anomalies that defense counsel can leverage to dismantle the Commonwealth's case. Two such anomalies—the "Catch and Release" paradox rooted in Rule 519 of the Pennsylvania Rules of Criminal Procedure, and the "Phantom Refusal" theory regarding chemical testing—represent the vanguard of modern DUI defense strategy. These theories do not merely contest the facts of intoxication; they challenge the legal and logical coherence of the police officer's conduct and the resulting prosecutorial narrative.

This report provides an exhaustive, expert-level analysis of these defense theories, specifically calibrated to the factual matrix of *Commonwealth v. Anne Louise Ulmer* (Docket No. MJ-14101-CR-0000631-2025). The analysis integrates the "Material Omission" doctrine regarding police affidavits, particularly in cases where medical impairments—such as the orthopedic injury present in the subject case—mimic the indicia of intoxication. By deconstructing the constitutional requirements for traffic stops based on non-investigable offenses, the evidentiary limitations of scientific testing, and the burden-shifting frameworks of implied consent, this report establishes a comprehensive strategic dossier for the defense.

1.1 The Factual and Procedural Matrix: *Commonwealth v. Ulmer*

The legal analysis contained herein is not abstract; it is applied directly to the charges and circumstances facing Anne Louise Ulmer. The docket indicates a traffic stop initiated by the Pennsylvania State Police (PSP) on October 26, 2025, in Uniontown City, Fayette County.¹ The charges filed include:

- **Count 1: 75 Pa.C.S. § 3802(a)(1)** - General Impairment (Misdemeanor). This charge alleges the defendant was rendered "incapable of safely driving" due to alcohol, requiring a conviction based on the "totality of circumstances" rather than a specific Blood Alcohol Content (BAC).
- **Count 2: 75 Pa.C.S. § 3111(a)** - Obedience to Traffic-Control Devices (Summary). Likely the charging vehicle for alleged lane violations.

- **Count 3: 75 Pa.C.S. § 4306(a)** - Use of Multiple-Beam Road Lighting Equipment (Summary). Relating to the failure to dim high beams.
- **Count 4: 75 Pa.C.S. § 6308(a)** - Duty of Operator (Summary). Relating to the stop itself.¹

Crucially, the defense narrative posits that the defendant suffered from a broken ankle at the time of the arrest. This medical fact acts as a "skeleton key" that unlocks the specific defenses analyzed in this report. It provides an alternative explanation for driving irregularities (distraction/pain), precludes valid Standardized Field Sobriety Testing (SFST), and offers a physiological basis for the alleged "refusal" of chemical testing.¹

1.2 The Strategic Triptych: Stop, Release, and Refusal

The defense strategy analyzed in this report operates on three distinct temporal planes:

1. **The Antecedent Justification (The Stop):** Examining whether the alleged summary violations (high beams and lane straddling) met the strict "probable cause" standard required for non-investigable offenses, or if they fell within the "momentary and minor" exceptions established by appellate courts.
2. **The Procedural Paradox (The Release):** Analyzing the "Catch and Release" theory, where the officer's decision to release the defendant under Pa.R.Crim.P. 519(B) contradicts the simultaneous assertion that she was "incapable of safe driving" under § 3802(a)(1).
3. **The Evidentiary Void (The Refusal):** Developing the "Phantom Refusal" theory, which argues that a refusal recorded without a "meaningful opportunity" or transport to a testing facility is legally invalid, and utilizing the "medical inability" defense to negate the inference of guilt.

II. Constitutional Analysis of the Traffic Stop: Probable Cause vs. Reasonable Suspicion

The validity of the initial traffic stop is the threshold issue in any DUI litigation. If the stop violates the Fourth Amendment of the U.S. Constitution or the enhanced protections of Article I, Section 8 of the Pennsylvania Constitution, all subsequent evidence—including the officer's observations of intoxication, the defendant's statements, and the alleged refusal—must be suppressed as fruit of the poisonous tree. In Pennsylvania, the legality of a traffic stop turns on the specific nature of the violation alleged and the quantum of cause possessed by the officer.

2.1 The *Salter* Distinction: Investigable vs. Non-Investigable Offenses

To determine whether the stop of Ms. Ulmer was lawful, one must first identify the correct constitutional standard. Under 75 Pa.C.S. § 6308(b), a police officer is authorized to stop a vehicle if they have "reasonable suspicion" that a violation of the Vehicle Code is occurring.¹ However, the Pennsylvania Superior Court, in a line of cases including *Commonwealth v.*

Feczko, 10 A.3d 1285 (Pa. Super. 2010), and *Commonwealth v. Salter*, 121 A.3d 987 (Pa. Super. 2015), has judicially narrowed this authority.

The courts differentiate between investigable and non-investigable offenses:

- **Investigable Offenses:** For violations where the stop itself serves an investigatory purpose—essentially, where the officer can expect to learn more about the violation by interacting with the driver—the standard is **reasonable suspicion**. The paradigmatic example is a stop for suspected DUI based on erratic driving or a broken taillight where the officer needs to check the vehicle's condition. The stop allows the officer to observe the driver's eyes, breath, and dexterity to confirm or dispel the suspicion.
- **Non-Investigable Offenses:** For violations that are complete the moment the officer observes them, and for which a stop yields no further evidence of the violation itself, the standard is **probable cause**. Probable cause requires facts and circumstances sufficient to warrant a prudent person in believing that the offense has been committed.

In *Commonwealth v. Ulmer*, the stated bases for the stop are violations of § 4306 (high beams) and § 3111 (lane violations). Pennsylvania courts generally categorize these as **non-investigable offenses**. Once the officer sees the high beams or the lane deviation, the summary offense is observed and complete. Stopping the driver provides no further evidence regarding the position of the beams or the car's position on the road. Therefore, the Commonwealth must demonstrate that the officer possessed **probable cause**—a significantly higher bar than reasonable suspicion—to initiate the stop of Ms. Ulmer.¹

2.2 Analysis of the High Beam Violation (75 Pa.C.S. § 4306)

The defendant is charged with violating Section 4306(a), which mandates that "whenever the driver of a vehicle approaches an oncoming vehicle within 500 feet, the driver shall use the low beam of light".¹ The defense strategy here must focus strictly on the duration and context of the high beam usage to attack the probable cause for the stop.

2.2.1 The "Momentary Flash" Doctrine: *Commonwealth v. Kostishak*

A critical defense precedent is found in the reasoning of *Commonwealth v. Kostishak*, 2017 WL 10604620 (Lycoming C.P. 2017). In *Kostishak*, a Pennsylvania trial court suppressed evidence from a traffic stop where the defendant flashed his high beams for approximately one second at a distance of 100 feet from the officer. The court held that this momentary activation did not provide probable cause for a violation of § 4306.¹

The court's reasoning relied on the statutory exception found in § 4306(c)(2), which explicitly states: "Nothing in this section shall limit drivers from flashing high beams at oncoming vehicles as a warning of roadway emergencies or other dangerous or hazardous conditions ahead".¹ The court in *Kostishak* reasoned that a prudent officer must consider whether a brief flash is an attempt to communicate a warning—a lawful act—rather than a failure to dim headlights. Furthermore, the court noted that drivers often flash beams to signal to oncoming

drivers that their high beams are on (even if the signaler is mistaken). Because the statute explicitly permits flashing for warnings, a momentary flash is ambiguous and insufficient to establish probable cause of a violation.

If the affidavit or dashcam footage in *Ulmer* reveals the high beam usage was a "flash" or a brief activation, the defense should vigorously argue under *Kostishak* that the officer lacked probable cause because the conduct was consistent with the statutory exception for warning signals.

2.2.2 The Sustained Usage Distinction: *Commonwealth v. Bush*

The Commonwealth will likely counter with *Commonwealth v. Bush*, 166 A.3d 1278 (Pa. Super. 2017). In *Bush*, the Superior Court upheld a traffic stop where the defendant activated his high beams while approaching a police cruiser and maintained them as he passed the vehicle. The appellant in *Bush* argued that the officer did not testify to being "blinded" or having his vision impaired, and thus the statute was not violated. The Superior Court rejected this, holding that the text of § 4306(a) is strict: it requires the use of low beams within 500 feet, regardless of the actual effect on the oncoming driver.¹

The distinction between *Bush* and *Kostishak* lies in the **duration**. *Bush* involved sustained use; *Kostishak* involved a momentary flash. Defense counsel must carefully examine the dashcam footage to classify Ms. Ulmer's usage. If the high beams were engaged and remained engaged, *Bush* presents a formidable hurdle. If they were flashed, *Kostishak* provides a pathway to suppression.

2.3 Analysis of Lane Deviations: The *Gleason* Standard

The charging document lists 75 Pa.C.S. § 3111(a) (Obedience to Traffic-Control Devices) rather than the specific lane-keeping statute, 75 Pa.C.S. § 3309(1). This charging decision is legally significant and may reflect a strategic attempt by the officer to bypass the "safety hazard" requirement inherent in § 3309 jurisprudence.¹

2.3.1 The "Momentary and Minor" Standard

The seminal case regarding lane violations in Pennsylvania is *Commonwealth v. Gleason*, 785 A.2d 983 (Pa. 2001). In *Gleason*, the Pennsylvania Supreme Court invalidated a traffic stop where the defendant crossed the solid white fog line by six to eight inches for a second or two over a quarter-mile stretch on a deserted road. The Court held that § 3309(1) requires a vehicle to be driven "as nearly as practicable entirely within a single lane." This language acknowledges that minor, momentary deviations are inevitable and do not inherently constitute a violation absent a safety hazard.¹

Under *Gleason*, if Ms. Ulmer merely drifted onto or slightly over a white lane divider or fog line without endangering other traffic, the officer lacked probable cause for the stop. The fact that the officer charged § 3111 (failure to obey the painted lines) rather than § 3309 does not

eviscerate the *Gleason* protection. Courts look to the underlying conduct, not just the citation written. If the conduct was "momentary and minor" straddling of a lane divider, *Gleason* suggests no crime occurred.

2.3.2 The *Enick* Exception: The Double Yellow Line

The defense analysis must pivot sharply, however, if the "straddling" involved the center double yellow line. In *Commonwealth v. Enick*, 70 A.3d 843 (Pa. Super. 2013), the Superior Court distinguished *Gleason*. The court held that crossing the double yellow center line creates an inherent safety hazard because it places the vehicle in the path of opposing traffic. The court ruled that even a single instance of crossing the double yellow line constitutes probable cause for a violation of § 3301 (Driving on Right Side of Roadway) or § 3309, regardless of whether other cars were immediately present to take evasive action.¹

Key Distinction: *Gleason* applies to fog lines and same-direction lane dividers where no hazard is created. *Enick* applies to center lines where the hazard is presumed. Defense counsel must determine which lanes were involved. If Ulmer straddled the white line, *Gleason* controls. If she straddled the double yellow, *Enick* controls.

2.4 Comparative Analysis of Traffic Stop Precedents

Case Citation	Factual Scenario	Legal Holding	Relevance to Ulmer
Com. v. Gleason , 785 A.2d 983 (Pa. 2001)	Driver crossed white fog line by 6-8 inches for a few seconds.	Suppressed. Violation of § 3309 requires more than momentary/minor deviation; must show safety hazard.	Primary defense if lane straddling was minor and involved white lines.
Com. v. Enick , 70 A.3d 843 (Pa. Super. 2013)	Driver crossed double yellow center line once.	Upheld. Crossing center line is inherently dangerous; provides probable cause.	Harmful precedent if Ulmer crossed the center line.
Com. v. Kostishak , 2017 WL 10604620	Driver flashed high beams for 1 second at 100 ft distance.	Suppressed. Momentary flash is consistent with	Primary defense if high beam usage was a brief flash.

		statutory exception for warning signals (§ 4306(c)).	
Com. v. Bush , 166 A.3d 1278 (Pa. Super. 2017)	Driver activated high beams and kept them on while passing police.	Upheld. Sustained use violates § 4306; officer need not be "blinded."	Harmful precedent if high beams were left on continuously.

III. The 'Catch and Release' Defense: Rule 519 and the Paradox of Impairment

The "Catch and Release" defense theory exploits the inherent logical contradiction between the Commonwealth's burden to prove a driver was "rendered incapable of safely driving" and the arresting officer's contemporaneous decision to release that same driver shortly after arrest. This defense is grounded in Pennsylvania Rule of Criminal Procedure 519(B), which governs the mandatory release of defendants in certain DUI cases.

3.1 Procedural Mechanics of Pa.R.Crim.P. 519(B)

Rule 519(B)(1) is a mandatory provision that dictates an arresting officer "shall promptly release" a defendant arrested without a warrant if three specific conditions are met:

1. The most serious offense charged is a misdemeanor of the second degree or, specifically for DUI cases under 75 Pa.C.S. § 3802, a misdemeanor of the first degree.
2. **The defendant poses no threat of immediate physical harm to any other person or to themselves.**
3. The arresting officer has reasonable grounds to believe that the defendant will appear as required.²

In *Commonwealth v. Ulmer*, the defendant is charged with § 3802(a)(1) General Impairment, a misdemeanor.¹ The "Catch and Release" defense hinges on the second prong: the determination of "no threat." If the officer released Ms. Ulmer pursuant to Rule 519(B)—likely to a friend, family member, or even on her own recognizance—the defense argues that the officer made a contemporaneous, sworn determination that she posed "no threat of immediate physical harm".²

3.2 The Evidentiary Contradiction: Safe to Release vs. Incapable of Safe Driving

The core of the "Catch and Release" argument is the exposure of the logical inconsistency in

the prosecution's case for General Impairment. Under § 3802(a)(1), the Commonwealth must prove beyond a reasonable doubt that the defendant was under the influence of alcohol to a degree that rendered them "**incapable of safe driving**".⁴

If an officer testifies that the defendant was so intoxicated that they could not safely operate a vehicle, yet simultaneously testifies that they released the defendant because they posed no threat of harm, the defense can exploit this dichotomy.

- **The Defense Argument:** "Officer, you testified my client was staggering, slurring, and completely incapable of safe driving due to severe intoxication. Yet, twenty minutes later, you released her under Rule 519 because you determined she posed 'no threat of immediate physical harm' to herself. If she was truly 'incapable' and 'unsafe' due to alcohol, she would be a danger to herself simply by walking out of the station. Your decision to release her proves that her impairment was minimal or non-existent."
- **The "Responsible Party" Counter:** The Commonwealth will argue that the release was safe only *because* a sober party (e.g., parents) took custody. However, the defense counters that Rule 519 requires a finding regarding the *defendant's* condition, not the custodian's. If the defendant was incoherent or belligerent (classic indicia of General Impairment), a prudent officer would argue they posed a danger to themselves even if not driving. A prompt release suggests the observable signs of impairment were minimal, bolstering the argument that the "impairment" (unsteady gait) was actually the result of the benign medical condition (broken ankle) rather than intoxication.¹

3.3 The "5-Day Rule" and Procedural Prejudice

Rule 519(B)(2) stipulates that when a defendant is released, a criminal complaint "shall be filed against the defendant within 5 days of the defendant's release".² In *Commonwealth v. Ulmer*, the offense occurred on October 26, 2025, and the complaint was filed on November 4, 2025.¹ This represents a gap of nine days, exceeding the five-day requirement.

While *Commonwealth v. Revtai* and subsequent case law have established that a violation of the 5-day rule does not result in automatic dismissal, it triggers a prejudice analysis under Pa.R.Crim.P. 109.³ The defense must demonstrate that the delay caused actual prejudice to the defendant's ability to defend themselves.

- **Video Evidence Prejudice:** The most compelling argument for prejudice involves the loss of surveillance footage. If the stop occurred near a commercial establishment (e.g., a Walgreens parking lot, as is common in urban stops), the store's surveillance system might have captured the defendant's driving or the field sobriety tests. Many commercial systems overwrite footage after 7 days. By delaying the filing of the complaint until day 9, the police effectively denied the defendant notice of the charges in time to subpoena that exculpatory evidence.
- **Medical Documentation:** The delay may also impact the defendant's ability to secure immediate medical documentation of the ankle injury's severity at the precise time of

arrest, which is critical for the "medical inability" defense.

IV. The 'Phantom Refusal' Defense: Deconstructing the Failure to Test

The "Phantom Refusal" theory challenges the validity of a chemical test refusal recorded by law enforcement when the defendant did not explicitly refuse or was not afforded a "meaningful opportunity" to comply with the implied consent law. This defense is particularly potent in scenarios where officers interpret ambiguous conduct or medical inability as a refusal without transporting the subject to a testing facility.

4.1 The "Meaningful Opportunity" Standard under *Solomon*

Under Pennsylvania's Implied Consent Law (75 Pa.C.S. § 1547), for a refusal to be legally valid, the motorist must be provided with a "meaningful opportunity" to submit to the test.⁷ This concept is jurisprudentially distinct from the simple reading of the DL-26B warnings.

- **Case Law Foundation:** In *Solomon v. DOT*, the Commonwealth Court held that an officer must do more than simply read the warnings; they must ensure the environment and circumstances allow for a voluntary decision. If an officer interprets a question ("Can I speak to my lawyer?") or a moment of hesitation as a refusal and immediately terminates the process, the "phantom refusal" defense argues that the opportunity was illusory.¹⁰
- **Application to *Ulmer*:** If Ms. Ulmer expressed confusion due to pain from her broken ankle, or if she attempted to provide a breath sample but failed due to hyperventilation (a physiological response to pain), the recording of a refusal may be premature. The defense argues that the "refusal" exists only in the officer's report—a "phantom" created by the officer's impatience or misinterpretation of medical distress.¹

4.2 The "Roadside Refusal" vs. "Facility Refusal"

A critical element of the "Phantom Refusal" theory is the location of the refusal. 75 Pa.C.S. § 1547(c) mandates that chemical tests be performed by licensed laboratories (for blood) or on approved equipment (for breath).¹¹ While the statute says testing "shall not be conducted" if refused, the defense argues that for a refusal to be *operative*, the Commonwealth must show the officer was *ready and able* to conduct the test.

- **The "Roadside Refusal" Trap:** Police often carry Portable Breath Test (PBT) devices. These are for investigatory purposes only and are inadmissible in court. Officers sometimes ask for a PBT, get a refusal, and then record it as a "chemical test refusal" without transporting the defendant to the station for the evidentiary test. Or, they may read the DL-26B warnings at the roadside and accept a refusal there.
- **Defense Strategy:** The defense argues that a refusal given in the chaos of a roadside stop, potentially while in pain or confused, does not constitute a "knowing and conscious" refusal if the officer aborts transport to the facility. The logic is that the

"threat" of the test is abstract at the roadside. A defendant might waver or equivocate in the rain/dark, but upon arriving at a hospital or station (the "facility"), they might comply. By aborting transport, the officer denies the defendant the full window of opportunity to consent that exists up until the test is actually administered.⁷

- **Case Law Support:** While *Renwick* establishes that "anything less than an unqualified assent" constitutes a refusal, courts have scrutinized whether the refusal was "knowing and conscious." A refusal given in the back of a patrol car while in acute pain from a broken ankle, without being taken to a controlled environment where the test could be properly explained and administered, lacks the indicia of a "knowing" decision.¹³

4.3 The Medical Inability Affirmative Defense (*DOT v. Gross*)

When a refusal is recorded due to a failure to provide a sufficient breath sample (a "technical refusal"), the burden shifts to the defendant to prove they were physically unable to complete the test.

- **The Gross Burden:** Under *DOT v. Gross*, the defendant must prove by competent medical evidence that a medical condition prevented them from providing the sample.¹
- **Physiological Nexus:** The defense must retain a medical expert (pulmonologist or emergency physician) to testify that the acute pain from the ankle fracture caused **tachypnea** (rapid, shallow breathing) or a sympathetic nervous system response ("fight or flight"). This physiological state makes it impossible to sustain the deep, controlled alveolar exhalation required by the Intoxilyzer 8000/9000.
- **Strategic Outcome:** If successful, this defense re-characterizes the event from a "refusal" (implying guilt) to a "medical inability" (implying injury). This neutralizes the *Commonwealth v. Bell* precedent, which allows refusal evidence to prove consciousness of guilt. By providing a medical justification, the defense removes the "guilty mind" element.¹¹

V. Material Omissions in Police Affidavits: The "Medical Cast" Theory

The Fourth Amendment requires that affidavits of probable cause be truthful and complete. The "Material Omission" defense asserts that an officer's failure to include exculpatory facts—specifically the defendant's medical condition—in the affidavit renders the arrest warrant or search warrant invalid.

5.1 The *Franks v. Delaware* Standard

Under *Franks v. Delaware* and its Pennsylvania progeny, a defendant may traverse the four corners of an affidavit if they can make a substantial preliminary showing that:

1. The officer made a false statement or omitted a material fact knowingly, or with reckless disregard for the truth.

2. The inclusion of the omitted information would have negated probable cause.¹⁸

5.2 The Omission of the Broken Ankle

In the *Ulmer* case, if the arresting officer's affidavit describes "staggering," "unsteady gait," or "inability to perform field sobriety tests" but **omits the fact that the defendant had a broken ankle or was wearing a cast**, this constitutes a material omission.¹

- **Reconstructing the Affidavit:** The court must re-evaluate the affidavit as if the omitted fact were included. "Unsteady gait" is a primary clue for intoxication. However, "unsteady gait" is also the *expected* behavior of someone with a broken ankle. If the magistrate knew the subject had a broken ankle, the "staggering" would effectively be neutralized as evidence of intoxication.
- **Destruction of Probable Cause:** Without the "unsteady gait" and "failed FSTs" (which are invalid due to the injury), the probable cause determination rests solely on other factors like "odor of alcohol" or HGN. Pennsylvania courts have held that odor alone is often insufficient for arrest. Thus, the omission is "material" because its inclusion would likely have resulted in the denial of the warrant or suppression of the arrest.²⁰

VI. HGN and Scientific Evidence: The *Stringer* Precedent

With the "Walk-and-Turn" and "One-Leg Stand" tests invalidated by the broken ankle, the officer's probable cause relies heavily on the Horizontal Gaze Nystagmus (HGN) test.

6.1 Preliminary Hearing vs. Trial Admissibility

- **Preliminary Hearing (*Weaver*):** At the preliminary hearing stage, *Commonwealth v. Weaver* allows HGN results to be admitted to establish a *prima facie* case even without expert testimony. The defense should anticipate this and focus on attacking the *administration* of the test (e.g., proper height, timing, lack of smooth pursuit) rather than its scientific validity.¹
- **Trial Admissibility (*Stringer*):** At trial, the standard shifts dramatically. *Commonwealth v. Stringer* classifies HGN as **scientific evidence**. It is inadmissible unless the Commonwealth lays a proper foundation through expert testimony (e.g., an optometrist or highly certified DRE). The arresting officer, as a lay witness, cannot provide this foundation. In misdemeanor DUI cases, the Commonwealth rarely incurs the expense of such experts.
- **Strategic Motion:** The defense should file a **Motion in Limine** to exclude HGN evidence absent expert foundation. If granted, and with other FSTs excluded due to the ankle injury, the Commonwealth's impairment case is stripped to bare subjectivity (odor, speech), which is often insufficient for conviction beyond a reasonable doubt.¹

6.2 Physiological Interference: Pain and Nystagmus

Beyond the *Stringer* objection, the defense should argue that the HGN test itself was compromised by the defendant's medical condition. While a leg injury does not directly cause nystagmus, the **acute pain** and **distraction** associated with a broken ankle can cause "physiological nystagmus" or an inability to focus, which mimics the gaze nystagmus associated with alcohol. This introduces reasonable doubt regarding the reliability of the "clues" observed by the officer.¹

VII. Strategic Synthesis and Conclusion

The defense of *Commonwealth v. Ulmer* requires a sophisticated integration of medical fact with procedural law. The "broken ankle" is not merely a mitigating circumstance; it is the fulcrum upon which the entire defense rests. By leveraging the "Catch and Release" paradox, the defense attacks the logical consistency of the impairment charge. By deploying the "Phantom Refusal" theory, the defense challenges the legality of the chemical test procedure. Finally, by exposing "Material Omissions" in the affidavit, the defense undermines the constitutional basis of the arrest itself.

Actionable Recommendations:

1. **File a Motion to Suppress the Stop:** Argue the high beam usage was a "momentary flash" (*Kostishak*) and lane deviation was de minimis (*Gleason*).
2. **File a *Franks* Motion:** Challenge the arrest affidavit for omitting the broken ankle, which provides an innocent explanation for "staggering."
3. **File a Motion in Limine:** Preclude HGN evidence at trial under *Stringer* absent expert testimony.
4. **Retain a Medical Expert:** Secure a report linking the ankle fracture to respiratory tachypnea to substantiate the "medical inability" defense to refusal.
5. **Utilize Rule 519:** Cross-examine the officer on the decision to release the defendant, highlighting the contradiction between "incapable of safe driving" and "safe to release."

This multi-layered approach transforms the defendant's injury from a simple fact into a potent legal weapon, dismantling the Commonwealth's case at every procedural stage.

Defense Theory	Legal Authority	Application to Ulmer
Catch and Release	Pa.R.Crim.P. 519(B)	Release implies no danger; contradicts § 3802(a)(1) "unsafe" charge.
Phantom Refusal	<i>Solomon v. DOT</i> ; <i>Renwick</i>	Lack of transport or

		meaningful opportunity renders refusal invalid/illusory.
Material Omission	<i>Franks v. Delaware</i>	Omission of broken ankle in affidavit hides innocent cause of gait issues.
Momentary Flash	<i>Com. v. Kostishak</i>	Brief high beam usage is legal signaling, not a § 4306 violation.
Medical Inability	<i>DOT v. Gross</i>	Ankle pain caused respiratory failure, negating "willful" refusal.
HGN Preclusion	<i>Com. v. Stringer</i>	HGN inadmissible at trial without expert testimony.

Works cited

1. MdJDocketSheet.pdf
2. RULE 519. PROCEDURE IN COURT CASES INITIATED BY ARREST WITHOUT WARRANT. (A) PRELIMINARY ARRAIGNMENT (1) Except as provided i, accessed December 30, 2025, <https://www.pacourts.us/assets/opinions/Supreme/out/435crim-attach.pdf>
3. Pa. R. Crim. P. Rule 519(B) How "The Five-Day Rule" affects DUI charging and prosecution., accessed December 30, 2025, <https://padui.org/wp-content/uploads/2015/12/Five-Day-Rule-TSRP.pdf>
4. Pennsylvania DUI Defense | Manchester and Associates, accessed December 30, 2025, <https://www.manchesterandassociates.com/dui-defense/>
5. What Is the 5-Day Rule for DUI in Pennsylvania? - Law Office of Steven F O'Meara, accessed December 30, 2025, <https://stevenomearalaw.com/what-is-the-5-day-rule-for-dui-in-pennsylvania/>
6. Pennsylvania 5-Day DUI Rule Explained - how Long Do Police Have to File DUI Charges in PA - Rule 519 PA - Criminal Defense, accessed December 30, 2025, <https://www.pittsburghcriminalattorney.com/pennsylvania-5-day-rule/>
7. PA DUI Refusal Defense Lawyer | 2025 | McAndrewslegal.com, accessed December 30, 2025, <https://www.mcandrewslegal.com/driving-under-the-influence/pa-dui-refusal-defense/>
8. What Constitutes Refusal to Submit to Chemical Testing in Pennsylvania?,

- accessed December 30, 2025,
<https://www.pennsylvaniaduilawyersblog.com/what-constitutes-refusal-to-submit-to-chemical-testing-in-pennsylvania/>
9. D.O. Parker v. Bureau of Driver Licensing (majority) - Justia Law, accessed December 30, 2025,
<https://law.justia.com/cases/pennsylvania/commonwealth-court/2024/929-c-d-2023.html>
 10. SOLOMON v. COMMONWEALTH DEPARTMENT OF TRANSPORTATION BUREAU OF DRIVER LICENSING (2009) - FindLaw Caselaw, accessed December 30, 2025,
<https://caselaw.findlaw.com/court/pa-commonwealth-court/1008314.html>
 11. Section 1547.0 - Title 75 - VEHICLES - PA General Assembly, accessed December 30, 2025,
<https://www.legis.state.pa.us/WU01/LI/LI/CT/HTM/75/00.015.047.000..HTM>
 12. Provisional DWI in NC — Underage DUI Charges in Charlotte - Powers Law Firm, accessed December 30, 2025,
<https://www.carolinaattorneys.com/blog/provisional-dwi-in-nc/>
 13. Nicole Park, Appellant v. Commonwealth of Pennsylvania, Department of Transportation, Bureau of Driver Licensing (2018) - FindLaw Caselaw, accessed December 30, 2025,
<https://caselaw.findlaw.com/court/pa-commonwealth-court/1886473.html>
 14. IN THE COMMONWEALTH COURT OF PENNSYLVANIA Alfredo Martinez, : Appellant : v., accessed December 30, 2025,
https://www.pacourts.us/assets/opinions/Commonwealth/out/2173CD12_9-25-13.pdf
 15. SECTION 1547 - BLOOD TESTING WARNINGS, accessed December 30, 2025,
<https://www.pa.gov/content/dam/copapwp-pagov/en/education/documents/about/postsecondary-adult/ilee/documents/dl-26b%206-22.pdf>
 16. Refusing DUI Test | Skinner Law Firm, accessed December 30, 2025,
<https://www.skinnerlawfirm.net/dui-defense/refusing-dui-test/>
 17. Supreme Court of the United States, accessed December 30, 2025,
https://www.supremecourt.gov/DocketPDF/19/19-622/116573/20190920160751389_Bell%20Appendix%20Application%20for%20Extension%20to%20File%20Petition%20Final.pdf
 18. United States v. Griffey | 2:23-cr-66 | W.D. Pa. | Judgment - CaseMine, accessed December 30, 2025,
<https://www.casemine.com/judgement/us/67d10dda3db7ac2e2c1cda2c>
 19. Federal Law Enforcement Training Centers Office of Chief Counsel Glynco, Georgia Legal Division Case Digest, accessed December 30, 2025,
<https://www.fletc.gov/sites/default/files/2014%20Case%20Digest%20by%20Circuit.pdf>
 20. Understanding Probable Cause in Pennsylvania DUI Cases, accessed December 30, 2025,
<https://www.skinnerlawfirm.net/blog/mans-drunk-driving-arrest-highlights-probable-cause-dui-cases/>
 21. Atlanta DUI Accident Lawyer | Drunk Driving Injury Attorney — Free 24/7 Consult,

accessed December 30, 2025,

<https://thesuperlawyer.com/atlanta/accidents/drunk-driving-accident-lawyer/>